



SPONSOR: Rep. K. Williams & Sen. Sturgeon

HOUSE OF REPRESENTATIVES  
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 261

AN ACT TO AMEND TITLE 14 OF THE DELAWARE CODE RELATING TO TRANSPORTATION OF PUPILS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1           Section 1. Amend § 2905, Title 14 of the Delaware Code by making deletions as shown by strike through and  
2     insertions as shown by underline as follows:

3           § 2905. ~~Transportation~~ Rules and regulations regarding the transportation of students of public and nonpublic,  
4     nonprofit elementary and high schools.

5           (a) The Department of Education shall make rules and regulations concerning the transportation of ~~pupils~~ students  
6     in ~~nonpublic, nonprofit~~ public elementary and secondary (~~high~~) schools in this State. ~~Such rules and regulations shall~~  
7     ~~provide for at least the following:~~

8           (b) The Department shall make rules and regulations regarding the transportation of students in nonpublic,  
9     ~~nonprofit elementary and secondary schools in this State. The rules and regulations shall provide for at least the following:~~

10           (1) All rules and regulations relative to ~~pupil~~ student transportation to nonpublic, nonprofit schools ~~shall be~~  
11     are the same as those applicable to public ~~schools;~~ schools.

12           (2) ~~Such~~ The rules and regulations shall limit transportation of ~~pupils~~ students in nonpublic, nonprofit schools  
13     to the elementary and secondary schools, except as provisions of this title may assign ~~such~~ the transportation  
14     responsibility to the Department of Education on behalf of ~~pupils~~ students enrolled at other levels in a public school  
15     ~~system;~~ system.

16           (3) ~~Pupils~~ Students enrolled in nonpublic, nonprofit schools ~~shall only be~~ are entitled to transportation only  
17     within the described boundaries of a public school district and not beyond those boundaries.

SYNOPSIS

This Act amends Title 14 to provide the Department of Education the authority to adopt rules and regulations regarding the transportation of public school students.